

ORDER SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT
W.P. No. 48397 of 2022

Amjad Shahzad		Vs.	Deputy Commissioner, etc.
<i>Sr. No. of order/ proceedings</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of Parties' counsel, where necessary</i>	

12.08.2022	Barrister Husnain Ali Ramzan, Advocate for the petitioner in W.P. No. 48397 of 2022. Mr. Muhammad Irfan, Advocate for the petitioner in W.P. No. 48375 of 2022. Mr. Azhar Iqbal, Advocate for the petitioner in W.P. No. 48379 of 2022. Mr. Akhtar Javaid, Addl. Advocate General, Punjab. Ms. Zarish Fatima Assistant Attorney General for Pakistan.
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This order shall decide Writ Petition Nos. 48397, 48375 and 48379 of 2022, seeking similar relief, which have been received by this Court in marking today.

2. Atta Ullah Tarrar, petitioner in W.P. No. 48379 of 2022, who is Special Assistant to the Prime Minister of Pakistan (‘PASM’) with status of Federal Minister and a member of Pakistan Muslim League (Nawaz) (‘PML-N’), Muhammad Kashif, petitioner in W.P. No. 48375 of 2022, who is an Advocate of this Court and Amjad Shahzad petitioner in W.P. No. 48397 of 2022 who is former National level hockey player, have through these connected petitions made more or less a similar prayer that Pakistan Tahreek-e-Insaf (‘PTI’) be restrained from holding public political gathering/Jalsa on 13th August, 2022 in the historical National Hockey Stadium, Lahore, reserved for purpose of games only, by directing the official respondents to revoke the permission dated 10.08.2022 granted by the District

Administration/ Deputy Commissioner, Lahore to PTI to hold the said Public Gathering and in the alternate to direct PTI to hold the said gathering at some other place.

3. The main contention of all the petitioners is that although they are not against the holding of political public gatherings/meetings by political parties yet such gatherings should not be held in National Hockey Stadium, Lahore, which is specifically designated and reserved for promotion of game of hockey, as the same would damage the turf of the said stadium and would be an impediment in the way of various hockey players/ clubs, etc. who participate in practice and matches held on Astroturf available in the stadium, which is the only stadium having such facility of international level/status available to them and would not only cause financial loss to the various club/participants but also result in decline in the level of expertise of participants/players as they would not have any reasonable opportunity to regularly play hockey at a place meeting with international standards, resultantly decreasing the standard of the game in Pakistan which is already suffering immensely due to lack of facilities, and in view thereof it is claimed that respondents be directed to hold political public gathering at some other ground/opens space such as Greater Allama Iqbal Park/Minaar-e-Pakistan, Baba ground near Sessions Court Lahore, Racecourse Park Lahore, etc.

4. It is further contended that the Pakistan Sports Board is comprised of various members, however, the letter dated 10.08.2022 issued by the

Sports Board to permit PTI to hold political public gathering does not show as to whether the meeting of the Board was held and all its members were consulted before issuing the said letter, on the basis of which Deputy Commissioner on the same day i.e. 10.08.2022 allowed the PTI to hold political public gathering at hockey stadium, besides, no reason whatsoever has been cited for selecting the premises and allowing of such permission for holding public gathering at the hockey stadium, moreover, removing of Astroturf for holding a political public gathering is not in the national interest as the same would damage the public property. It is also claimed that the grant of permission is also against the provision of Section 17 of Punjab Civil Administration Act, 2017 (**‘the Act’**) prohibiting undue wastage or destruction of property and holding of political public gathering despite being a fundamental right is subject to certain reasonable restrictions which aspect has not been considered while allowing permission to PTI to hold the gathering.

5. On the other hand, learned Addl. Advocate General states that permission has been granted to hold political public gathering after due deliberations keeping in view the pros and cons, security reasons, availability of different sites/ places and the petitioners have failed to point out any of their fundamental right that has been infringed by grant of said permission. Besides, the government/district administration is to ensure holding of peaceful public gatherings and to determine the venue by allowing or declining permission to hold public meeting at the proposed

site or at some other place where the same could be properly managed on case to case basis. Moreover, the government is in process of replacing the Astroturf and it is ensuring that no damage is caused to the property and Astroturf is replaced at the earliest.

Furthermore, it is claimed that Province of Punjab has not been impleaded as party in one of the connected petitions, hence, the said petition is not maintainable in view of principles laid down in judgment reported as Qazi Munir Ahmad versus Rawalpindi Medical College and Allied Hospital through Principal and others (2019 SCMR 648).

6. PTI, which is going to hold the political public gathering tomorrow i.e. on 13.08.2022 (Saturday), is unrepresented as this case has been fixed before this Court today as an urgent case on being assigned to this Court after 03:00 p.m. in today's marking and sufficient time is not available to issue notices to them to appear in the Court before the holding of political public gathering at National Hockey Stadium, Lahore, hence, this order is being passed on the basis of available material in the interest of justice in their absence, however, if they are aggrieved of any observation or direction issued herein, they may file application for re-hearing of the matter.

7. The main grievance of the petitioners is that grant of permission to PTI to hold political public gathering at the Hockey Stadium be recalled as the same may damage the property of the stadium to the detriment of players which is not in the interest of general public. The order passed by Deputy

Commissioner dated 10.08.2022 granting permission is reproduced below:

**“OFFICE OF THE
DEPUTY COMMISSIONER
LAHORE**

No.ADC(HQ)/OS/7088 Dated: 10/08/2022

To

Sheikh Imtiaz Mahmood,
President,
Pakistan Tehreek-e-Insaf, Lahore.

Subject:

**PERMISSION FOR HOLDING OF PUBLIC
GATHERING / JALSA ON 13-08-2022 AT
NATIONAL HOCKEY STADIUM LAHORE**

Reference your request on the subject cited above.

2. Since holding of Public Gathering at National Hockey Stadium entails high security risk so the permission at the proposed site is being issued after submission of undertaking by the organizer to the effect that in case of any untoward incident he shall be held responsible; District Administration and District Police proposes to issue N.O.C for holding of Public Gathering at National Hockey Stadium Lahore, subject to the following conditions:-

- (1) **Organizers will be responsible for ensuring stage security, security of ladies and gents enclosures, emergency exits, measures for controlling stampede and adequate parking through the hiring of private security and volunteers.**
- (2) Organizers will nominate focal persons who will coordinate with Superintendent of Police, Model Town and SP Traffic Police to ensure traffic and security arrangements at all points.
- (3) Organizers will work in coordination with Superintendent of Police, Model Town and Superintendent of Police (Security), Lahore to ensure all relevant security measures are in place.
- (4) Police will devise and implement comprehensive security and traffic plans for ensuring befitting arrangements for Ex-Prime Minister of Pakistan. Three tier security deployment to be ensured along with other necessary security apparatus.
- (5) Administrative and security requirements for the public gathering will be outlined by Special Branch in a security audit and communicated to the police in a timely manner so that the same are ensured and any deficiencies/lacunae are corrected.
- (6) Traffic Police will issue and implement a detailed traffic plan and advisory for the event.
- (7) Superintendent of Police (Security), Lahore to convene a meeting with the organizers for necessary arrangements and take undertaking from them about their responsibilities.
- (8) **Organizer shall be responsible for any damage to the public property.**
- (9) The use of deck/sound system shall be regulated under the provisions of Punjab Sound Systems (Regulation) Ordinance, 2015.
- (10) The Volunteers/Razakars provided by the organizer shall be responsible to control the

participants of the Public Gathering/Jalsa on entry points, shall ensure the formation of queues, and make sure that participants remain peaceful and disciplined at the entrance while being searched and a serene atmosphere is maintained.

- (11) The organizer shall arrange generator to maintain uninterrupted power supply/ electricity.
- (12) The organizer shall ensure that minor children are not brought to the Public Gathering/Jalsa.
- (13) No one shall be forced to close their business.
- (14) No procession / rally shall be taken out on the roads/ streets.
- (15) No speeches against constitutional offices / Armed Forces/ Judiciary shall utter.
- (16) No one shall be allowed to enter the venue with batons.
- (17) There shall be no utterance which is likely to injure the feeling of any religious group / party / sect.
- (18) Display of fire arms shall be strictly prohibited and fireworks shall not be used.
- (19) No mobile van or any other vehicle shall be used for the announcement of the Public Gathering/Jalsa.
- (20) No reception desks by the organizers shall be established outside the National Hockey Stadium Lahore, hence if needed only the District Police will allow the establishment of reception desks at designated spots.
- (21) There shall be no wall chalking in any part of the city regarding the Public Gathering/ Jalsa.
- (22) Streamers / Banners shall only be hanged after approval from the PHA. No banner / streamer if allowed by PHA shall contain any objectionable contents.
- (23) Peaceful atmosphere shall be maintained at all times.
- (24) Objectionable/ offensive slogans shall be prohibited.
- (25) No one shall be forced to attend the Public Gathering/Jalsa from within the City or from any other District.
- (26) For safety of the general public, maintenance of law and order and normalcy at the venue, District Police shall check/ search any vehicle/person coming to attend the Public Gathering/Jalsa. No hindrance shall be created by the organizers in this regard.
- (27) No effigy / flag of any political, religious party or any person belonging to any country shall be burnt.
- (28) Parking area for the vehicles coming for the Public Gathering/Jalsa shall be designated by the Traffic Police.
- (29) The administration/management of Public Gathering/Jalsa shall fully cooperate with District Police for ensuring foolproof security. No laxity shall be allowed In this regard.
- (30) The organizers shall ensure that workers/ participants coming from out of District abide by the conditions under which the permission is being granted.
- (31) **The organizers shall make sure that all the conditions are fulfilled/ observed till the Public Gathering/Jalsa comes to an**

end and the workers/participants are dispersed peacefully and reach their destinations.

- (32) The organizer shall fulfill all requirements of National Hockey Stadium Lahore including payment of any security charges.
- (33) The operation of this NOC shall be subject to any subsequent guidelines/ directions issued by the Government.

3. In view of overall security situation and threat alerts received from different quarters, the organizers are once again cautioned and advised to undertake all requisite precautionary measures in and around the venue for safety of participants and general public since this public gathering is being convened at their call.

**Deputy Commissioner
Lahore.”**

(emphasis supplied)

8. The permission by the Board of Directors of Punjab Sports Board dated 10.08.2022 mentioning the precautionary measures taken to hold the public gathering is reproduced below:

“1/38(SBP)NHS

Directorate General Sports
& Youth Affairs/SBP
National Hockey Stadium, Lahore.
Dated:10-08-2022

To,

The District Sports Officer,
Lahore.

Subject:

**SECURITY OF PUBLIC GATHERING /
JALSA AT NATIONAL HOCKEY
STADIUM, LAHORE ON 13-08-2022.**

Reference your letter No.1/7/DSO/Lhr/17 dated 10-08-2022 on the subject noted above.

2. It is to intimate that in connection with Public Gathering / Jalsa at National Hockey Stadium, Lahore on 13-08-2022 following precautionary measures has been taken to secure the turf and sports equipment's of National Hockey Stadium, Lahore.

- i. As per the orders of the authority the turf is being wrapped and will be saved.
- ii. Teams sitting benches have been shifted to the Mini Hockey Stadium, Lahore.
- iii. Goal posts have also been shifted to the Mini Hockey Stadium, Lahore.

ADMINISTRATOR
National Hockey Stadium,
Lahore”

(emphasis supplied)

9. The covering letter issued by District Sports Officer Lahore dated 10.08.2022 addressed to the Addl. Deputy Commissioner, Headquarter, Lahore to convey the decision of the Board is reproduced below:

**“OFFICE OF THE
DISTRICT SPORTS OFFICER, LAHORE**
NATIONAL HOCKEY STADIUM – NISHTAR PARK
SPORTS COMPLEX, FEROZEPUR ROAD, LAHORE
E-Mail: tsolahorecity@gmail.com

No. 1/7/DSO/Lhr/17

Dated: 10-08-2022

To

The Additional Deputy Commissioner
(Hqrs.)
Lahore.

Subject: SECURITY OF PUBLIC GATHERING / JALSA
AT NATIONAL HOCKEY STADIUM, LAHORE
ON 13-08-2022

Kindly refer to your letter vide No.
ADC(HQ)/0S17063 dated 09-08-2022 alongwith its
enclosures on the subject cited above.

In view of the above, enclose please find
herewith detailed report of Administrator, National Hockey
Stadium, Lahore Office of the Directorate General Sports &
Youth Affairs / SBP, National Hockey Stadium, Lahore vide
No. 1/38(SBP)NHS dated 10-08-2022 (copy enclosed).

DISTRICT SPORTS OFFICER
LAHORE.”

10. The perusal of the afore-referred correspondence for grant of permission to hold public gathering *prima facie* shows that permission of Sports Board was obtained before permission was granted by the Deputy Commissioner to PTI to hold public gathering, wherein the Board had also conveyed that certain precautionary measures were being taken before the holding of public gathering and the Deputy Commissioner has also informed the Organizers of the high security risk and they have been made responsible for maintaining the security by ensuring that relevant security measures are in place and that they shall be responsible for any damage to the property as in apparent from the condition No.8 of the letter whereby permission has been granted.

11. As far as the contention by the learned counsel for the petitioners that the respondents

may be directed to hold the political public gathering at Greater Iqbal Park Lahore, it is observed that public gatherings at the said Park have been banned in order to preserve public peace and for the protection of Greater Iqbal Park in terms of powers conferred upon the Deputy Commissioner under Section 15, 16 and 17 of the Act vide order dated 28.05.2022, which is reproduced below:

**“OFFICE OF THE
DEPUTY COMMISSIONER
LAHORE**

No.ADC(HQRS)/HC-II/638
Dated: 28-05-2022

ORDER:

WHEREAS, on 20-4-2017 vide Order No.SG 3073, the Commissioner Lahore Division ordered that:

“The Greater Iqbal Park, Lahore, inaugurated in December 2016, has been developed with a huge effort under an elaborate plan. Its development has become an important building block in proposed creation of the National Independence Heritage Complex. Its maintenance and proper upkeep will pose a big challenge. With a view to ensuring this, any political or other form of gathering therein is banned forthwith. This policy decision henceforth needs to be implemented without any exception.”

The above order is in field.

WHEREAS, under the Punjab Civil Administration Act 2017, sections 15, 16 and 17 empower the Deputy Commissioner to order/take action for the preservation of public order and public spaces.

NOW, therefore, in light of the above and in order to preserve public peace and for the protection of the Greater Iqbal Park, I Muhammad Umer Sher, Deputy Commissioner, Lahore exercising the powers conferred upon me under sections 15, 16 & 17 of the Punjab Civil Administration Act, 2017, declare that any political or other form of gathering of the Greater Iqbal Park, Lahore is banned forthwith.

**Muhammad Umer Sher
Deputy Commissioner
Lahore.”**

12. Therefore, in view of the afore-referred order whereby ban has been imposed on political and other forms of gathering at Greater Iqbal Park, this Court is not inclined to issue direction to PTI to hold public gathering at the said place. As far as

other venues suggested by the petitioners are concerned, suffice it to observe that it is for the District Administration/government Authorities to decide that whether the said venues are suitable for holding public gathering in the public interest or not and this Court in its Constitutional jurisdiction cannot undertake the said exercise as the same requires deeper probe into disputed facts not permissible to be undertaken in constitutional jurisdiction of this Court in ordinary circumstances. It is settled by now that executive functionaries had to be given autonomy of discretion with enough space to carry out their job without let or hindrance as it was essential as well as expedient that exercise of freedom was to be reasonably regulated on administrative considerations on the paramountcy of larger public interest because the public functionaries and executive authorities were the best judges to evaluate the nature and scope of their work and magnitude of threats so as to take all appropriate remedial measures/steps required to obviate impending disasters and these were not justiciable issues. Reliance is placed on Azhar Abbas Haideri v. Government of the Punjab and others (PLD 2022 Lahore 278) in which while recording aforementioned observation, it was held that the order passed by the Deputy Commissioner was well within his competence and defined domain. Moreover, some disputed facts are involved in the matter which cannot be determined without deeper appreciation of material which is not available before this Court, therefore, this Court is not inclined to decide the said aspects of the matter,

which even otherwise are within domain of the relevant authorities. Reliance is placed on Pakistan WAPDA Employees Pegham Union v. Member, National Industrial Relations Commission, Islamabad and others (2014 SCMR 1676), Bashir Ahmad v. Messrs Roots School Network through Administrator/Owner and others (2011 SCMR 290) and Amir Jamal and others v. Malik Zahoorul-Haq and others (2011 SCMR 1023). There is another aspect of the matter that representation has already been filed by one of the petitioners before the Commissioner for determination of the same and where alternate remedy is available or has been availed, this Court does not ordinarily interfere in its constitutional jurisdiction in such matter lest the same may prejudice the decision of the authorities. Reliance is placed on Province of Punjab through Secretary Communication and Works Department, Lahore through Chief Engineer (North/Central) Punjab Highway Department, Lahore v. Yasir Majeed Sheikh and others (2021 SCMR 624), Federation of Pakistan through Secretary Establishment Division, Islamabad v. Shafqat-ur-Rehman Ranjha and others (2021 SCMR 153), Indus Trading and Contracting Company v. Collector of Customs (Preventive) Karachi and others (2016 SCMR 842), Dr. Sher Afghan Khan Niazi v. Ali S. Habib and others (2011 SCMR 1813) and Muhammad Abbasi v. S.H.O. Bhara Kahu and 7 others (PLD 2010 SC 969).

13. As regards the contention that Province of Punjab has not been impleaded as respondent in a petition, therefore, same is not maintainable,

suffice it to observe that although non-impleading of Province of Punjab may be fatal in ordinary circumstances where Province of Punjab is not impleaded and represented in any of the cases, in view of the judgment of Qazi Munir Ahmad's case (supra) and Government of Baluchistan CWPP&H Department and others v. Nawabzada Mir Tariq Hassan Khan Magsi and others (2010 SCMR 115), however, said principle is subject to exception that in connected cases where all the necessary parties despite not being impleaded in some cases are represented and are parties in other connected cases and had an opportunity to present their case, the objection of not impleading them in all the connected cases does not result in abatement of said cases and the same cannot be dismissed on the said ground as not maintainable because the defect, if any, of non-impleading the parties in some of the cases stands cured in the said circumstances and would not be fatal due to the parties being represented in other connected cases and also had been provided reasonable opportunity to present their case. Reliance in this behalf is placed on judgment reported as Haji Sikandar v. Malik Khan Muhammad and others (1973 SCMR 420) in which it has been laid down that where the proceedings are consolidated and appeals are heard together, the defect of non-impleadment of a party is cured because of the reason of its being present before the Court in the connected matter. The said principle was also followed by this Court in the case reported as Sh. Muhammad Fazil v. Sh. Abdul Qadir (1997 CLC 243) wherein it has been held that impleadment in each and every appeal may

not be required for the particular reasons that appeals are being heard together and all the parties are represented in one appeal or the other. This is the advantage of consolidated hearing of the appeals which cannot be denied in the peculiar circumstances of the cases. In the present cases as all these petitions have been heard together and Province of Punjab is represented in some of the petitions and learned Addl. Advocate General has been heard at length which arguments cover all these cases, therefore, the defect of non-impleadment of Province of Punjab in some connected petitions is no longer fatal and had become a curable defect in view of the aforementioned circumstances which defect by representation through Addl. Advocate General stands cured. In these circumstances, the petition cannot be declared as not maintainable on the said ground and to the said extent, the same is maintainable.

14. As regards the grounds raised by the petitioners that all the members of Pakistan Sports Board were not represented while letter dated 10.08.2022 was issued by them, suffice it to observe that no one from the members of the Pakistan Sports Board has challenged the permission granted by the Board and in these circumstances, the said letter issued by the Board is deemed to be issued on behalf of all members of the Board with its authority on the basis of principles of indoor management as an outsider cannot question the legality of what transpires inside the closed doors when the meeting of the Board, if any, was held and what decisions were

actually taken in the said meeting. Reliance may be placed upon Dar Okaz Printing and Publishing Limited Liability Company Vs. Printing Corporation of Pakistan Private Limited. (PLD 2008 SC 808), The Pakistan Employees Cooperative Housing Society Limited, Karachi Vs. Mst. Anwar Sultana and others (PLD 1969 Karachi 474), Parvez Aslam Mian Muhammad Aslam Vs. Synthetic Chemical Co. Limited, Karachi and another (PLD 1980 Karachi 401), Muhammad Yasin Fecto and another Vs. Muhammad Raza Fecto and 3 others (1998 CLC 237 Karachi).

In Messrs Canal Breeze Cooperative Housing Society Limited Vs. Agriculture and Transport Development Corporation (Pvt.) Limited (2000 SCMR 506) it has been held that doctrine of indoor management is applicable to transaction entered between a 3rd party and a cooperative society registered under the Cooperative Societies Act, 1925 in the same manner as the doctrine applied to transaction between third parties and a company registered under the Companies Act, 1913 or Companies Ordinance, 1984. On the same analogy, the doctrine of indoor management shall be applicable to the decisions taken by the Board in its meeting as to the transactions relating to third parties and unless someone from inside the Board challenges the transaction on the ground that the same was not the act of the Board, this Court would not ordinarily interfere at the behest of an outsider/ third party in a decision purported to be decision of the Pakistan Sports Board.

15. Another aspect of the matter is that one of the petitioners has already filed representation/petition before the Commissioner, Lahore challenging the order passed by Deputy Commissioner, Lahore whereby permission has been granted to PTI to hold political public gathering. Although the other petitioners claim that they have not challenged the said order and have directly approached this Court, however, in view of the fact that one of the parties has already challenged the impugned order before Commissioner Lahore Division, it would not be in the interest of justice to proceed simultaneously at two different forums especially when the Commissioner Lahore Division is in a position to consider all the relevant facts and decide the matter by determining the disputed questions of fact raised by the parties, hence, instead of passing any order on the factual aspects of the matter lest it may prejudice the decision of Commissioner Lahore Division, who is stated to be competent authority in this matter, this Court without commenting upon the merits of the grounds raised by the petitioners deems it appropriate to let the Commissioner concerned decide the matter on its own merits in accordance with law without being prejudiced by any of the observation made by this Court for which purpose parties may approach the office of the said respondent for further proceedings.

16. As regards the contention of the petitioners that holding of political public gathering shall damage the property of the National Hockey Stadium, Lahore, therefore, permission granted to

the respondent/PTI be recalled, suffice it to say that Province of Punjab and the District Administrator in terms of Section 17 of the Act have to ensure that sufficient arrangements are made to protect the property and the same is neither wasted nor damaged and hold the PTI and its management responsible to indemnify the loss or damage, if any, caused by them to the property of hockey stadium, for which condition No.8 has already been mentioned in the permission granting order of the Deputy Commissioner. However, as the Astroturf previously laid down in the stadium has been removed as a precautionary measure, as evident from the order dated 10.08.2022 passed by Pakistan Sports Board, therefore, PTI cannot be held responsible to bear the cost of the purchase of new Astroturf at this stage, which cost for purchase is to be borne by the Government of Punjab as hockey is the National game of Pakistan and has been a source of pride for the nation as it has carried with dignity the national flag and emblem of Pakistan to represent before various nations in international games.

17. For what has been discussed above, these petitions are **disposed of** in the following terms that:

- a. the objection raised by learned Addl. Advocate General that as the Province of Punjab has not been impleaded in one of the petitions, the same is not maintainable, is without any substance as the said objection has lost its efficacy as Province of Punjab has been impleaded as party in other connected

petitions and Addl. Advocate General representing the Province of Punjab has been heard at length and in these circumstances said objection is not a ground to pass the order dismissing the petition as not maintainable. Hence, the petitions are maintainable to that extent.

- b. As regards contention of the petitioner that the respondents be restrained from holding public/political gathering/*jalsa* at the National Hockey Stadium, Lahore, I am not inclined to interfere in the same as one of the petitioners has already through representation approached the Commissioner, Lahore to challenge the permission allowed by Deputy Commissioner, Lahore who has to decide the same on its own merits in accordance with law and any observation by this Court may prejudice the decision to be taken by the Commissioner.
- c. various factual aspects of the matter that cannot be determined through these petitions without deeper appreciation of disputed facts requiring grant or refusal of permission to hold *Jalsa*/political public gathering, including public safety and security are involved which is within the domain of relevant authorities such as District Administration and its hierarchy and not determinable through these petitions by this Court in its

Constitutional jurisdiction, therefore, direction by this Court restraining any party to hold the political public gathering which has been permitted by the relevant authority would not be in the interest of justice at this stage and in these circumstances, this Court is also not inclined to direct the PTI to hold political public gathering/*jalsa* at some other place as the same was within the jurisdiction of the relevant authority to determine whether to permit a party to hold its gathering at the proposed place *inter alia* considering security aspect of the matter, which the petitioners may approach for redress of their grievance.

- d. the Province of Punjab shall ensure that during holding of public gathering, no damages is caused to the property by any of the parties, participants or outsiders and it shall ensure that the party holding the gathering shall be bound to indemnify the wastage/ damage, if any, caused to the property.
- e. As Hockey is our National game, therefore, the Provincial Government shall ensure that said turf is replaced by new one or is restored at the earliest and for the said purpose special arrangements shall be made in the budget by the Provincial Government.
- f. As regards the loss suffered by any player or club, it is observed that if there is any loss of income, the

concerned person may challenge the same before relevant authorities which claim, if raised, shall be decided on its own merits in accordance with law.

- g. Learned Addl. Advocate General shall communicate to the Commissioner/ relevant authorities that proper orders be passed on the application already filed by any of the parties or that may be filed before the said authority in future relating to issue in hand, on its own merits in accordance with law.

(MUZAMIL AKHTAR SHABIR)
JUDGE

*MuzamilMohsin**

Approved for reporting.